

File No.: EXP202311063

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On July 14, 2024, a complaint was received by this Agency from Mr. A.A.A. (hereinafter, the complainant) against the GENERAL DIRECTORATE OF THE GUARDIA CIVIL (hereinafter, the respondent) for not having duly attended to his right of access.

The complainant, on June 24, 2023, requested from the respondent "(...) First. The information regarding the exact dates of the inquiries made about the personal data of the undersigned in any of the databases of the Guardia Civil (SIGO, SINVES, etc.) as well as in the database of the General Directorate of Traffic (DGT), in addition to information regarding the purposes of the processing of the aforementioned inquiries and of said personal data.

Furthermore, I am interested in the information from each of the Units of the Guardia Civil where the inquiries regarding the personal data of the undersigned were made.

Second. The information regarding the identity of the Guardia Civil officers who carried out the inquiries into the personal data of the undersigned, as it is essential to allow the interested party to exercise the rights conferred by the Regulation. (...)"

The respondent replied indicating that the request was forwarded to the General Staff - Section of General Affairs for processing, and that said Section "(...) in a letter dated July 11, 2023, informs that the only recipients provided for in the treatments to which the interested party refers for the transfer of information are the Judicial Authorities and the Public Prosecutor's Office, other Security Forces and Bodies, Penitentiary Institutions, and bodies for coordination or with competencies in public security matters."

SECOND: In accordance with Article 65.4 of the LOPDGDD, the aforementioned complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations, with no record of any response having been submitted.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for understanding that the claims of the complainant were satisfied. Consequently, on October 18, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing, to present any allegations deemed appropriate within ten working days.

The respondent stated, in summary, that "(...) the request made by the interested party to know the accesses made to his data in the different treatments of the Guardia Civil is of considerable complexity; therefore, it has been impossible to fulfill it to date, and we are working on it. (...) as soon as we have the requested information, it will be communicated to the interested party and to that Authority."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, he may formulate any allegations he considers appropriate, indicating, in summary, that he is not informed of when the requested access will be provided.

FIFTH: The responsible party, having been granted a hearing, states that the complainant, during the 15 years he has been active, "(...) may have consulted countless times on occasions of requests he has made (permits, courses, etc.)" and "(...) an audit of the inquiries made in the last two years has been requested (...)"

"We understand that, in light of the above, Mr. A.A.A. will be able to narrow down with some detail the inquiries he considers unjustified, and based on that, we can continue to move forward to provide him

with a response (...)”

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, by the general rules on administrative procedures.”

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II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proof of having provided the due response to the complainant.

The result of this forwarding did not satisfy the claims of the complainant. Consequently, on October 18, 2023, for the purposes provided in Article 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint upheld.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers to correct any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

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III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account. In accordance with these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to address such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

According to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the “data or processing activities to which the request refers.” The right will be considered granted if the controller provides remote access to the data, with the request being deemed addressed (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. Furthermore, the request will be considered excessive when the affected party chooses a means other than that offered which incurs a disproportionate cost, which must be borne by the affected party.

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Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data in question, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Conclusion

The rights procedure is initiated as a consequence of the denial of any of the rights regulated in the data protection regulations. Therefore, in this case, only the facts related to the requested right will be

analyzed, excluding other issues.

In this case, and taking into account the provisions of the first paragraph of this Legal Basis, it has been established that the claimant requested from the respondent information about the dates of the inquiries made regarding their personal data, the information from each of the Units of the Civil Guard where the inquiries were made, and the identity of the Civil Guards who carried out the inquiries, and that the respondent replied indicating, in a generic manner, that the only recipients provided for in the processing to which the data subject refers for the transfer of information are the Judicial Authorities and the Public Prosecutor's Office, other Security Forces and Bodies, Penitentiary Institutions, and bodies for coordination or with competencies in public security matters.

During the processing of this procedure, the respondent has expressed the complexity of the request received.

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Regarding "The information on the exact dates of the inquiries made about the personal data of the undersigned (...)", Recital 39 of the GDPR states that the principle of transparency "specifically refers to the information of the data subjects about the identity of the data controller and the purposes of the processing, and to the additional information to ensure fair and transparent processing with respect to the affected individuals and their right to obtain confirmation and communication of the personal data concerning them that are being processed."

That is to say, it refers to a broad concept of the right of access, which is also addressed in the Guidelines 01/2022 on the rights of data subjects, right of access, of the European Data Protection Board (EDPB) in its section 94: "The WP29 considered that the definition of personal data in Directive 95/46/EC 'reflects the intention of the European legislator.'"

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of a broad concept of "personal data." According to the GDPR, the definition still refers to "any information related to an identified or identifiable natural person." Aside from basic personal data, such as name and address, phone number, etc., a wide variety of unlimited data can be included in this definition, including medical findings, purchase history, credit indicators, the content of communications, etc. In light of the broad scope of the definition of personal data, a restrictive assessment of that definition by the data controller would lead to a misclassification of personal data and, ultimately, to a violation of the right of access." That is, it would not be so much about the "access" to simple dates, but to the "history" of the accesses that various civil guards have made to their personal data. This would be closely related to point 35 of the Judgment of the Court of Justice of the European Union (CJEU) case C-154-21 - Österreichische Post: "Among these principles is the principle of transparency referred to in Article 5, paragraph 1, letter a), of the GDPR, which implies, as stated in recital 39 of this Regulation, that the data subject has information about how their personal data is processed and that this information is easily accessible and understandable."

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Regarding "The information on the purposes of the processing of the aforementioned queries and of such personal data"

Article 15.1.a) of the GDPR states that the data subject has the right of access to information regarding "the purposes of the processing."

Paragraph 114 of the previously cited Guidelines 01/2022 indicates that "the information on the processing referred to in Article 15, paragraph 1, letter a), does not contain information about the legal basis for the processing. However, since the rights of some data subjects depend on the applicable legal basis, this information is important for data subjects to verify the legality of the data processing and to determine which rights of the data subject are applicable in the specific situation."

Point 37 of the aforementioned CJEU case C-154-21 states: "Fourthly, the Court of Justice has already stated that the exercise of this right of access must allow the data subject to verify not only that the personal data concerning them is accurate but also that it is processed lawfully (see, by analogy, the

judgments of July 17, 2014, YS and others, C-141/12 and C-372/12, EU:C:2014:2081, paragraph 44, and of December 20, 2017, Nowak, C-434/16, EU:C:2017:994, paragraph 57)."

Finally, the Constitutional Court ruling 292/2000, of November 30: "the content of the fundamental right to data protection consists of a power of disposition and control over personal data that empowers the individual to decide which of that data to provide to a third party, whether the State or a private individual, or which this third party may collect, and that also allows the individual to know who holds that personal data and for what purpose, being able to oppose that possession or..."

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use. These powers of disposal and control over personal data, which constitute part of the content of the fundamental right to data protection, are legally embodied in the ability to consent to the collection, obtaining, and access to personal data, its subsequent storage and processing, as well as its possible use or uses by a third party, whether the State or a private individual. And this right to consent to the knowledge and processing, whether computerized or not, of personal data requires as indispensable complements, on the one hand, the ability to know at all times who has that personal data and what use they are subjecting it to, and, on the other hand, the power to oppose that possession and uses.

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Regarding "The identity of the Civil Guards who carried out the consultations of the personal data of the undersigned"

Article 15.4 of the GDPR establishes that "The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others."

Therefore, the General Directorate of the Police, as the data controller of your personal data, may inform the interested party how it has processed them, that is, the dates of access and the purpose of such personal data processing operation. However, it cannot provide the identity of its employees.

As a consequence of the above, it is appropriate to uphold the claim presented regarding "The information on the exact dates of the consultations carried out on the personal data of the undersigned (...)", and "The information on the purposes of the processing of the aforementioned consultations and of said personal data" and to dismiss the request for "The identity of the Civil Guards who carried out the consultations of the personal data of the undersigned."

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by Mr. A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge the GENERAL DIRECTORATE OF THE CIVIL GUARD with NIF S2816003D, to send the claimant a certification within ten working days following the notification of this resolution, addressing the requested right or denying it with justification indicating the reasons why the request cannot be met, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to the GENERAL DIRECTORATE OF THE CIVIL GUARD.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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